

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

C.R. No.428-D of 2014

Muhammad Ramzan
v.
Shahid Jamal and others

J U D G M E N T

Date of hearing	16.2.2026
Petitioner by	Ch. Haq Nawaz, Advocate.
Respondents by	Mr. A.R. Aurangzeb, Advocate.

Rasaal Hasan Syed, J. Shahid Jamal and others legal heirs of Jamal Din son of Haji Lal Bakhsh instituted a suit on 22.9.2008 for specific performance of agreement to sell which was contested by petitioner. Issues were framed and evidence got recorded whereafter the suit was decreed on 22.9.2011. Petitioner challenged the judgment and decree in appeal which too was dismissed by learned Addl. District Judge vide judgment dated 03.6.2014. In the instant revision petition the judgments of the courts below are under challenge.

2. Heard.

3. Facts of the case are that respondents instituted an action for specific performance claiming that in the year 1998 petitioner agreed to sell the suit-property, a house, for Rs.6,50,000/-, the agreement was oral, a sum of Rs.3,00,000/- was paid as advance and possession was delivered to them. On 18.2.1999 the respondents paid a

sum of Rs.3,50,000/- through two cheques and a motorcycle (Honda CD-70 - registration No. 7291-RNR) and that the petitioner executed agreement admitting payment of consideration of Rs.6,50,000/-. It was stated that the suit-property was mortgaged with a financial institution, petitioner promised to transfer the same by getting it redeemed. Suit was instituted on 22.9.2008 by Shahid Jamal, etc. as legal heirs of late Jamal Din who was allegedly intending buyer of the suit-property and had died much before the filing of the suit. Petitioner denied the version in the suit of alleged agreement of sale and maintained that he had not executed any such agreement nor made any written acknowledgment or received any amount from the petitioner in cash, kind or through cheques and took the stance that the plea of encashment of cheques was a result of collusiveness of the predecessor of respondents with the bank manager and that he had never received any amount from the concerned financial institution against the said cheques and further that suit was barred by time. Issues were framed, parties produced their evidence whereafter the learned Civil Judge decreed the suit vide judgment dated 22.9.2011. Appeal of the petitioner thereagainst was dismissed by learned Addl. District Judge vide judgment dated 03.6.2014.

4. The case set up in the plaint was that Muhammad Ramzan petitioner had allegedly orally agreed to sell the suit-property for Rs.6,50,000/-; that bargain/transaction was oral and that, thereafter, on 18.2.1999 a written agreement was executed by which the balance sale price of Rs.3,50,000/- was paid through two cheques along

with a motorcycle. The suit was never filed by Jamal Din in his lifetime who was stated to have died. No death certificate of Jamal Din was produced, however, Shahid Jamal his son while appearing as PW6 deposed that his father had died 10/11 years earlier.

5. In the first instance the respondents were required to prove oral agreement in terms whereof an amount of Rs.3,00,000/- was alleged to have been paid without any receipt and possession was claimed to have been delivered. Superior courts have ruled that claim of oral agreements are more prone to dishonest improvements by parties in the evidence and pleadings to succeed and that where the claims are predicated on oral agreement the claimant shall be bound to record in pleadings the date, time and place of such alleged bargain, terms of the claimed transaction and the persons in whose presence the oral agreement was entered into and to, thereafter, based on such recorded stance to establish such material facts through cogent evidence. Reference can be made to Hafiz Qari Abdul Fateh through LR. v. Ms. Urooj Fatima and others (2024 SCMR 1709) and Moiz Abbas v. Mrs. Latifa and others (2019 SCMR 74).

6. In the instant case neither in the plaint nor in the alleged agreement Exh.P1 dated 18.2.1999 there was any reference or mention of date, time or place when transaction was orally settled or who was present at the material time to bear witness. In evidence an attempt was made to cover the lacuna where different statement about the date and time of oral agreement was made. It is settled rule that the material facts must be founded in the plaint and only thereafter evidence can be led to

substantiate and prove the same. It is also a rule that where the material assertions have not been made in the plaint, no evidence could be led to prove or amplify the same and even if any such evidence has been led, the same cannot form part of admissible evidence. Reference may be made to Saddaruddin (since deceased) through LRs. v. Sultan Khan (since deceased) through LRs and others (2021 SCMR 642), Abrar Ahmad v. Irshad Ahmad (PLD 2014 SC 331) and Government of West Pakistan v. Haji Muhammad (PLD 1976 SC 469).

7. Curiously in the instant case respondents averred delivery of possession and payment of Rs.3,00,000/- yet no receipt or other document was drawn at the time. The oral statement of witnesses to claim their presence at the time of oral agreement were contradictory and otherwise inadmissible and, therefore, the courts below committed serious error of law and acted without jurisdiction to proceed based on inadmissible evidence and ignored this important aspect of the case on flimsy and perfunctory grounds.

8. The second limb of the plea taken in the plaint was that Rs.3,50,000/- were paid to petitioner through two cheques and delivery of motorcycle. Strangely enough neither of the cheques was issued by the respondents nor this amount was claimed to have been paid by the plaintiffs from their own account. As to why the cheques were issued by Muhammad Arif and Barkat Ali instead of plaintiffs remained a mystery. Be that as it may, no amount in cash or by cheque was ever claimed to have been paid through the bank accounts of the plaintiffs. As regards the cheques themselves these were

not legally proved. It was claimed that cheques were encashed by Muhammad Ramzan in whose name cheques were issued, however, perusal of the said instruments shows that these do not contain particulars or parentage of bearer nor any clue from which it could be assumed that the petitioner was beneficiary thereof. Bearer cheques could be encashed on presentation by anyone and not made to be payable to account of payee only; did not impart much credence to claim of payment to the petitioner which had to be proved to have been delivered specifically to the petitioner and to have been encashed by him or on his behalf or that he had acknowledged the same. Even on the reverse of the instruments no particulars of recipient were mentioned. Manager of the bank produced by the respondents also candidly admitted that these were bearer cheques that could be encashed by anyone on presentation at the bank. Nobody had identified the signatures on the back of the cheque. The bank manger also admitted that he was neighbor of Muhammad Arif who claimed the cheques that bore no entry of CNIC or any reliable particulars on the reverse. Obviously, the bank manager was not the concerned person but it was only the cashier or the second official of bank who could be a direct witness in such case where bearer cheque was claimed to have been encashed over the counter on presentation and could have deposed about the payment made to a person and his particulars and that too by bringing original record pertaining the account. Admittedly neither any officer or cashier who encashed the cheque was produced in evidence nor was original bank record such

as ledger book, statement of account, etc. produced, therefore, these documents were characterized as Mark “A” and Mark “B” which did not mean that they were part of evidence. So much so the witness also admitted that he had not issued copies of cheques which were produced in evidence by the respondent/plaintiff. Barkatullah another person who allegedly issued the cheque for Rs.2,60,000/- was not produced in evidence, though he was alive.

9. The question as to whether Barkatullah had issued cheques and, if so, for what purpose and delivery of the bearer cheques to the petitioner and their encashment as holder in due course as payment towards sale price of property by the petitioner remained unproved as admittedly contents thereof were not written by Barkatullah himself and were stated to have filled up by someone else. In these circumstances the appearance of Barkatullah in witness-box was necessary as he could explain these elements and his nonappearance would stimulate an adverse inference against respondents who were banking upon such cheques. Needless to mention that Muhammad Arif PW5 who made statement in this regard was not a witness to the agreement Exh.P1 nor his name was mentioned in the plaint as witness to the payment and as such his statement being inadmissible could not be considered.

10. Another factor which was illegally ignored by the courts below that the oral agreement was claimed to the year 1998, the written agreement Exh.P1 was claimed to be of 18.2.1999 but the suit was filed on 22.9.2008 notwithstanding the fact that Jamal Din the alleged

buyer had died as acknowledged by son Shahid Jamal who stated that his father had died 10/11 years ago which statement was recorded on 06.5.2008.

11. Respondents were required to prove why there was inaction and silence for a decade and as to why the father did not institute any suit in his lifetime. With a view to cover the deficiencies an attempt was made to claim that the property was mortgaged, and that the petitioner had promised to get it redeemed and to thereafter execute the sale deed. This statement was against and beyond the contents of Exh.P1 that made no reference to any mortgage or the alleged commitment qua sale on redemption rather the document shows that the alleged beneficiary was entitled to claim transfer of property as and when chosen.

12. The plea taken being not supported by the agreement was inadmissible. Even otherwise this was a false plea as on being asked in cross-examination respondent No.1 as PW6 admitted that he did not know when the property was mortgaged and that when it was redeemed. He admitted that in the agreement there was no mention of mortgage, therefore, the plea of waiting for 10 years to seek equitable relief under section 22 of Specific Relief Act, 1877 could not be entertained. Respondent No.1 was asked as to whether any notice was issued by the respondents or their father during 10 years from the date of document for registration of sale deed it was admitted that no such notice was ever issued to the petitioner. The silence and inaction of the respondents for 10 years without any basis was itself in the circumstances sufficient to infer that the document

was fabricated and at a stage when their father had died and they knew that criminal proceedings against dead person could not be initiated.

13. Respondents also claimed that in addition to cheques, a motorcycle was given as a part of consideration amount but no registration book or any other document of title qua the motorcycle was produced in evidence that made the whole version suspect. The courts below misread the material on record and relied upon inadmissible evidence for recording perfunctory reasoning which is against the law and also contrary to evidence on record.

14. Resultantly, the revision petition is **allowed**, impugned judgments and decree dated 22.9.2011 of learned Civil Judge, Liaquatpur and dated 03.6.2014 of learned Addl. District Judge, Liaquatpur are set aside and suit of respondents is consequently **dismissed**. No Order as to costs.

(RASAAL HASAN SYED)
JUDGE

ANNOUNCED IN OPEN COURT ON 26.2.2026

JUDGE

APPROVED FOR REPORTING

JUDGE